



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 19, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201904816 regarding Sergeant Harry Delacruz, Tax No. 941272 (DADS No. 2021-23593)

Dear Mr. Darche:

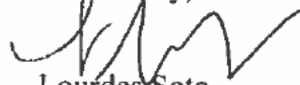
The Police Commissioner has reviewed the facts and circumstances in this matter and disagrees with the determination by the Civilian Complaint Review Board (CCRB) that Sergeant Delacruz should receive a disciplinary penalty under the above referenced CCRB case for his actions in arresting the individual.

After a careful review of the facts, video evidence, statements and documentation, the Police Commissioner determined the actions of Sergeant Delacruz were appropriate in arresting the individual in this instance. Sergeant Delacruz was entering a location while investigating a radio run involving a firearm. Sergeant Delacruz was taunted by the individual immediately before entering the building. The individual followed Sergeant Delacruz into the vestibule, at which point, Sergeant Delacruz determined that the individual was intentionally obstructing Sergeant Delacruz's ability to perform his official duty to investigate a radio run involving a firearm. As a result, Sergeant Delacruz placed the individual under arrest. The reasonable force used by Sergeant Delacruz in grabbing his arm to effect the arrest in this instance was appropriate.

Therefore, the Police Commissioner directs that Sergeant Harry Delacruz receive No Disciplinary Action for the alleged violation of Patrol Guide Procedures 221-01 (Force Guidelines) and 221-02 (Use of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish at the end.

Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office